

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 912

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO MEDICAID; AMENDING CHAPTER 2, TITLE 56, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 56-276, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING MEDICAID WORK REQUIREMENTS; AMENDING CHAPTER 2, TITLE 56, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 56-277, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING MEDICAID ELIGIBILITY VERIFICATION; AMENDING CHAPTER 2, TITLE 56, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 56-278, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING INELIGIBLE ALIENS; AMENDING CHAPTER 2, TITLE 56, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 56-279, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING MULTISTATE ENROLLMENT; AMENDING CHAPTER 2, TITLE 56, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 56-280, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING DECEASED ENROLLEES; AMENDING CHAPTER 2, TITLE 56, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 56-281, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING RETROACTIVE ELIGIBILITY; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 2, Title 56, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 56-276, Idaho Code, and to read as follows:

56-276. MEDICAID WORK REQUIREMENTS. (1) As used in this section:

(a) "Applicable individual" means an individual who is eligible to enroll under the state medicaid program pursuant to 42 U.S.C. 1396a(a)(10)(A)(i)(VIII) or who is otherwise eligible to enroll or is enrolled under a waiver of such plan that provides coverage that is equivalent to minimum essential coverage and has attained the age of nineteen (19) and is under sixty-five (65) years of age, is not pregnant, is not entitled to or enrolled for benefits under part A of title XVIII of the social security act, or enrolled for benefits under part B of title XVIII of the social security act, and is not otherwise eligible to enroll under such plan, and is subject to work requirements.

(b) "Department" means the Idaho department of health and welfare.

(c) "Work requirements" means the requirements established by 42 U.S.C. 1396a(xx).

(2) No later than December 31, 2026, the department shall implement work requirements for applicable individuals.

(a) No applicable individual shall be enrolled in medicaid unless, at the time of application, the individual demonstrates compliance with the work requirements for the three (3) consecutive months immediately preceding the month during which the individual applies. The department shall require documentary evidence and shall not accept self-attestation at the time of application.

(b) The department shall verify an applicable individual's compliance with work requirements through state wage data, education or training program enrollment, or verified volunteer service documentation. The department shall verify an applicable individual's compliance with work requirements on an ongoing basis, at least quarterly between redetermination periods, and shall not accept self-attestation. Such verification shall occur between periods of formal redetermination for individuals.

(c) No applicable individual shall remain enrolled in medicaid in any month unless the individual has demonstrated compliance with the work requirements.

(3) An applicable individual seeking an exemption from work requirements shall provide documentation for the exemption sought. The department shall verify all exemptions and shall not accept self-attestation from individuals seeking exemptions.

(a) The department shall not seek or implement any additional optional exemptions under 42 U.S.C. 1396a(xx) (3) (B) or any other optional exemption without obtaining approval from the legislature. Such approval shall be provided in statute.

(b) The department shall not accept exemption designations, approvals, or determinations by a managed care organization.

(c) The department shall only approve an exemption for an individual who is medically frail or otherwise an individual with special needs if the individual has been medically certified by a statement from a physician, physician's assistant, nurse, nurse practitioner, designated representative of a physician's office, a licensed or certified psychologist, or a social worker as having a disabling mental disorder, having a physical, intellectual, or mental disability that significantly impairs the ability to perform activities of daily living, including eating, dressing, bathing, grooming, getting in and out of beds and chairs, walking, going outdoors, or using the toilet, or is in treatment for chronic substance use disorder. In no case may the department expand the definition of "medically frail or otherwise an individual with special needs" beyond the scope of the definition established under 42 CFR 440.315(f).

(4) The department shall disenroll any applicable individual who fails to comply with the work requirements.

(5) The department shall submit quarterly reports to the legislature and the governor on compliance rates, the number and type of exemptions granted, and the impact on medicaid enrollment, consistent with the reporting requirements of section 71119, P.L. 119-21.

(6) The requirements of this section shall be implemented no later than December 31, 2026, or such earlier date as permitted by federal law and approved by the centers for medicare and medicaid services.

SECTION 2. That Chapter 2, Title 56, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 56-277, Idaho Code, and to read as follows:

56-277. MEDICAID ELIGIBILITY VERIFICATION. (1) Except as required under federal law, the department of health and welfare shall not accept self-

1 attestation of any of the following in the administration of the medicaid
2 program without verification before enrollment:

- 3 (a) Income;
- 4 (b) Residency;
- 5 (c) Identity;
- 6 (d) Household composition; or
- 7 (e) Citizenship or immigration status.

8 (2) On at least a monthly basis, the department of health and welfare
9 shall receive and review information concerning medicaid recipients that
10 indicates a change in circumstances that may affect medicaid eligibility
11 from:

- 12 (a) The state tax commission;
- 13 (b) The United States social security administration, including
14 earned income information, death register information, incarceration
15 records, supplemental security income information, beneficiary
16 records, earnings information, and pension information;
- 17 (c) The United States department of health and human services, includ-
18 ing income and employment information maintained in the national direc-
19 tory of new hires database and child support enforcement data;
- 20 (d) The United States department of housing and urban development, in-
21 cluding payment and earnings information; and
- 22 (e) The federal bureau of investigation, including national fleeing
23 felon information.

24 (3) On at least a quarterly basis, the department of health and welfare
25 shall receive and review information from the department of labor concerning
26 medicaid recipients that indicates a change in circumstances that may affect
27 medicaid eligibility, including changes to employment or wages.

28 (4) On at least an annual basis, the department of health and welfare
29 shall receive and review information concerning medicaid recipients that
30 indicates a change in circumstances that may affect medicaid eligibility
31 from:

- 32 (a) The state tax commission, including adjusted gross income and fam-
33 ily composition; and
- 34 (b) The internal revenue service, including tax filing data, adjusted
35 gross income, and family composition.

36 (5) The department of health and welfare shall enter into any
37 data-sharing agreements with the agencies, departments, and bureaus de-
38 scribed in this section as necessary to effectuate the requirements of this
39 section.

40 (6) The department of health and welfare may contract with an indepen-
41 dent third party for database searches that may contain information that in-
42 dicates a change in circumstances that may affect medicaid applicant or re-
43 cipient eligibility.

44 (7) Upon receiving information concerning a medicaid recipient that
45 indicates a change in circumstances that may affect medicaid eligibility,
46 the department of health and welfare shall promptly conduct an eligibility
47 redetermination for the recipient.

48 (8) Unless prohibited under federal law, the department of health and
49 welfare shall conduct eligibility redeterminations for all nonelderly adult
50 medicaid recipients whose eligibility is determined based on the appli-

1 cation of modified adjusted gross income standards under 42 CFR 435.603,
 2 including adults eligible under 42 U.S.C. 1396a(a)(10)(A)(i)(VIII) and 42
 3 U.S.C. 1396u-1 at least once every six (6) months.

4 (9) The department of health and welfare shall conduct eligibility re-
 5 determinations for all medicaid recipients not described in subsection (8)
 6 of this section at least once every twelve (12) months.

7 SECTION 3. That Chapter 2, Title 56, Idaho Code, be, and the same is
 8 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 9 ignated as Section 56-278, Idaho Code, and to read as follows:

10 56-278. INELIGIBLE ALIENS. (1) The department of health and welfare
 11 shall not provide medical assistance to an individual in Idaho unless the in-
 12 dividual is:

13 (a) A resident of the United States; and

14 (b) At least one (1) of the following:

15 (i) A citizen or national of the United States;

16 (ii) An alien lawfully admitted for permanent residence as an im-
 17 migrant, as defined in 8 U.S.C. 1101(a)(15) and (20), excluding
 18 alien visitors, tourists, diplomats, students, or other individ-
 19 uals admitted temporarily without intent to abandon their resi-
 20 dence in a foreign country;

21 (iii) An alien who has been granted the status of Cuban or Haitian
 22 entrant, as defined in section 501(e), P.L. 96-422; or

23 (iv) An individual lawfully residing in the United States in ac-
 24 cordance with a compact of free association pursuant to 8 U.S.C.
 25 1612(b)(2)(G).

26 (2) The department of health and welfare shall require that all income
 27 of ineligible household members be included when calculating financial eli-
 28 gibility for medicaid.

29 (3) The department of health and welfare shall include an immigration
 30 status on all presumptive eligibility applications submitted to the depart-
 31 ment. The department shall require hospitals, clinics, and other qualified
 32 entities conducting presumptive eligibility determinations to collect and
 33 transmit such attestations to the department. No presumptive eligibility
 34 application shall be approved unless the applicant certifies that the appli-
 35 cant is a qualified citizen.

36 (4) The department of health and welfare shall verify citizen-
 37 ship or immigration status prior to enrollment and shall conduct regular
 38 cross-checks of applicant and recipient information against federal
 39 databases, including the systematic alien verification for entitlements
 40 program. A match through any electronic or data verification system shall
 41 not, by itself, be accepted as proof of identity. Each applicant shall be
 42 required to provide documentary proof of United States citizenship, United
 43 States national status, or alien status eligible for medical assistance.
 44 The department shall promptly refer any applicant identified as an individ-
 45 ual who is not a citizen or national of the United States and does not have
 46 lawful immigration status as defined under federal law to the United States
 47 immigration and customs enforcement or other appropriate federal authori-
 48 ties for further investigation and enforcement.

1 (5) This section shall not affect coverage for emergency medical
2 services provided to all individuals as required pursuant to 42 U.S.C.
3 1396b(v).

4 (6) The requirements set forth in this section shall be implemented no
5 later than October 1, 2026.

6 SECTION 4. That Chapter 2, Title 56, Idaho Code, be, and the same is
7 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
8 ignated as Section 56-279, Idaho Code, and to read as follows:

9 56-279. MULTISTATE ENROLLMENT. (1) The department of health and wel-
10 fare shall receive and review address change information from returned mail
11 by the United States postal service, the national change of address data-
12 base, and medicaid managed care companies operating in Utah. The department
13 shall conduct cross-checks of such address change information against state
14 medicaid enrollment at least monthly to identify enrollees who have moved
15 out of state. The requirements of this subsection shall be implemented no
16 later than January 1, 2027.

17 (2) The department of health and welfare shall receive and review in-
18 formation regarding out-of-state electronic benefit transactions and con-
19 duct cross-checks of such information against state medicaid enrollment at
20 least monthly to identify enrollees who have moved out of state. The re-
21 quirements of this subsection shall be implemented no later than January 1,
22 2027.

23 (3) Upon receiving information concerning a medicaid enrollee that in-
24 dicates a change in circumstances that may affect medicaid eligibility, in-
25 cluding a change in residency, the department of health and welfare shall
26 promptly conduct an eligibility redetermination for the enrollee.

27 (4) The department of health and welfare shall submit enrollment infor-
28 mation to the centers for medicare and medicaid services national medicaid
29 enrollment database every month to identify individuals enrolled in medic-
30 aid in multiple states at the same time. The requirements of this subsection
31 shall be implemented no later than October 1, 2029.

32 (5) No later than August 31 of each year, the department of health and
33 welfare shall submit an annual report to the legislature detailing the im-
34 plementation of the requirements established in this section. The annual
35 report shall be made publicly available on the department of health and wel-
36 fare website and shall include:

37 (a) The number of enrollees flagged through address change information
38 and out-of-state electronic benefit transactions;

39 (b) The number of enrollees removed from medicaid due to enrollment in
40 multiple states; and

41 (c) The estimated fiscal impact to the state due to implementing the re-
42 quirements of this section.

43 SECTION 5. That Chapter 2, Title 56, Idaho Code, be, and the same is
44 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
45 ignated as Section 56-280, Idaho Code, and to read as follows:

1 56-280. DECEASED ENROLLEES. (1) As used in this section, "death master
2 file" means the database maintained by the United States social security ad-
3 ministration containing reported deaths.

4 (2) The department of health and welfare shall receive and review in-
5 formation from the death master file and shall conduct cross-checks of such
6 information against state medicaid enrollment at least monthly to identify
7 deceased medicaid enrollees.

8 (3) The department of health and welfare shall receive and review data
9 regarding birth and death records from the bureau of vital records and health
10 statistics and shall conduct cross-checks of such data against state medic-
11 aid enrollment at least monthly to identify deceased medicaid enrollees.

12 (4) The department of health and welfare shall remove any deceased en-
13 rollee from the medicaid program promptly upon confirmation of death.

14 (5) The department of health and welfare shall ensure that no medicaid
15 payments are made on behalf of a deceased enrollee for services rendered af-
16 ter the date of death.

17 (6) The department of health and welfare shall recoup any funds ex-
18 pended on deceased enrollees for capitations or services occurring after the
19 date of death.

20 (7) The requirements of this section shall be implemented no later than
21 January 1, 2027.

22 SECTION 6. That Chapter 2, Title 56, Idaho Code, be, and the same is
23 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
24 ignated as Section 56-281, Idaho Code, and to read as follows:

25 56-281. RETROACTIVE ELIGIBILITY. (1) As used in this section:

26 (a) "Expansion population" means individuals who are eligible for
27 medical assistance under 42 U.S.C. 1396a(a)(10)(A)(i)(VIII), commonly
28 known as the medicaid expansion population under the affordable care
29 act.

30 (b) "Medicaid" means the medical assistance program established under
31 title XIX of the social security act and administered by the department
32 of health and human services.

33 (c) "Non-expansion population" means all individuals eligible for med-
34 icaid who do not qualify under the expansion population definition, in-
35 cluding but not limited to pregnant women, children, elderly individu-
36 als, and persons with disabilities.

37 (d) "Retroactive eligibility" means medicaid coverage for services
38 provided prior to the month of application, as authorized by 42 U.S.C.
39 1396a(a)(34).

40 (2) The department of health and welfare shall limit retroactive eligi-
41 bility for medicaid benefits as follows:

42 (a) For individuals determined to be eligible as part of the expansion
43 population, medicaid coverage may be made retroactive for no more than
44 one (1) month prior to the month in which the individual submits a com-
45 pleted medicaid application.

46 (b) For individuals eligible as part of the non-expansion population,
47 medicaid coverage may be made retroactive for no more than two (2)
48 months prior to the month in which the individual submits a completed
49 medicaid application.

1 (3) The limitations set forth in subsection (2) of this section apply
2 only to initial applications for medicaid and do not affect eligibility for
3 continuous or ongoing coverage.

4 SECTION 7. An emergency existing therefor, which emergency is hereby
5 declared to exist, this act shall be in full force and effect on and after its
6 passage and approval.